



DECISION

Complaint No. : POS/2294/KE-276/2025

Name and Address of the Complainant : Mr. Ramzan s/o Jan Muhammad & others, R/o Samoon Goth U.C Murad Memon, Gadap Town, District Malir, Karachi.

Name of the Agency Complained against : Revenue Department.

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :-

INACTION ON APPLICATION MADE FOR PAYMENT OF COMPENSATION ON ACCOUNT OF DAMAGE TO CROPS OF THE COMPLAINANTS BY THE OFFICIAL OF MALIR EXPRESSWAY.

THE COMPLAINT

Mr. Ramzan & others, in their joint complaint dated 07.04.2025, stated that they have no regular source of income and depend entirely on agriculture for their livelihood. They alleged that on 23.01.2025, officials of under construction Malir Expressway, ran over their crops, without prior notice, causing destruction to their plantations of spinach, chili, coriander, mint, tomato, eggplant, bottle gourd, and onion, spread over an area of approximately 40 acres along the bank of Malir River. As a result, around 15–20 farmers were affected. The complainants admitted that they were cultivating on state land and have no objection to road construction, but requested that since their crops have been damaged which they stated was raised by borrowing large amount from local market, which they are now unable to repay if they do not get compensation. They further stated that they had submitted an application to the Deputy Commissioner Malir, but no action was taken. When they personally visited the DC's office, they always were asked to come next day but with no resolution provided. The complainants emphasized that their children are also affected and they have been unemployed for the past three months due to this loss. They therefore, solicited intervention of this office in the matter.

PROCEEDINGS

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, complaint was examined in detail and the complainants were also heard in person.

FINDING

3. I have examined the case file, perused complaint and observed that the complainants were cultivating crops unauthorizedly on state land. Their demand for compensation to damages of their crops lacks any legal right over such compensation.

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DECISION

4. In view of above, the complaint stands disposed of as rejected.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated

21, 11, 2025

